

21STCV42883 21STCV42883

County: los-angeles

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The Court is granting the Defendants' motion for leave to conduct a mental examination of the Plaintiff. The examination shall be conducted by Dr. Dean C. Delis, Ph.D, pursuant to the protocols set forth in Dr. Delis's declaration in support of the Defendants' motion. Those protocols provide as follows: (1) Dr. Delis will exercise his professional judgment to select which tests to administer to Plaintiff from the list of possible tests identified in his declaration. (2) Dr. Delis will send the raw test data to a psychologist retained by Plaintiff's attorney. (3) Plaintiff's attorney may separately record the testing part of the exam and also send that to the retained psychologist. (4) If Plaintiff's retained psychologist finds that Dr. Delis made material mistakes, the raw test data and audio may be released to Murillo's attorney pursuant to a protective order and able to be used on cross-examination.

The Court agrees with Defendants that Randy's Trucking v. Superior Court (2023) 91 Cal.App.5th 818 does not foreclose the use of Dr. Delis's protocol in connection with the mental examination of the Plaintiff.

The Court will enter the proposed order that Defendants submitted with their motion. The order sets forth, among other things, the date and location of the mental examination of the Plaintiff that Dr. Delis will conduct.